

25STCV22140 25STCV22140

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV22140 Hearing Date: June 29, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

JANE DOE 1

, et al.;

Plaintiffs,

vs.

PEGASUS REAL ESTATE

ADVISORY LLC

, et al.;

Defendants.

Case

No.:

25STCV22140

Hearing

Date:

June
29, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

ORDER

TO SHOW CAUSE RE: WHETHER THE COURT SHOULD (1) ALLOW PLAINTIFFS JANE DOE 1 AND JANE DOE 2 TO PROCEED UNDER A PSEUDONYM, AND (2) REQUIRE PLAINTIFFS JANE DOE 1 AND JANE DOE 2 TO AMEND THEIR COMPLAINT TO STATE THEIR REAL NAMES

(2)

defendant

PEGASUS REAL ESTATE ADVISORY LLC's demurrer to PLAINTIFFS' complaint

MOVING PARTY: (2) Defendant Pegasus Real
Estate Advisory LLC

RESPONDING PARTY: (2) Plaintiffs Jane Doe 1 and Jane Doe 2

(1) Order to Show Cause Re: Whether the Court

Should (1) Allow Plaintiffs Jane Doe 1 and Jane Doe 2 to Proceed Under a Pseudonym, and (2) Require Plaintiffs Jane Doe 1 and Jane Doe 2 to Amend their Complaint to State Their Real Names

Demurrer to Complaint

(2) Defendant Pegasus Real Estate Advisory LLC's Demurrer to Plaintiffs' Complaint

The court considered "Plaintiff's Response to the Court's Order to Show Cause Re: 'Jane Doe' Status" in connection with the order to show cause hearing.

The court considered the moving, opposition, and reply papers filed in connection with this demurrer.

ORDER TO SHOW CAUSE RE: WHETHER THE COURT SHOULD (1) ALLOW PLAINTIFFS JANE DOE 1 AND JANE DOE 2 TO PROCEED UNDER A PSEUDONYM, AND (2) REQUIRE PLAINTIFFS JANE DOE 1 AND JANE DOE 2 TO AMEND THEIR COMPLAINT TO STATE THEIR REAL NAMES

The

court finds that plaintiffs Jane Doe 1 and Jane Doe 2 ("Plaintiffs") have met their burden to show that there is an overriding interest that will likely be prejudiced without the use of a pseudonym and it would not be feasible to protect the interest with less impact on the constitutional right of access. (Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 111-112 ["Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur only in the rarest of circumstances"] [internal quotation marks and citation omitted]; Roe v. Smith (2025) 116 Cal.App.5th 227, 239 [agreeing that "trial courts faced with a motion to proceed pseudonymously should apply the overriding interest test outlined in NBC Subsidiary and California Rules of Court, rule 2.550(d)"].)

The

court finds that (1) Plaintiffs have an overriding interest that overcomes the right of public access to the record because the sexual assault and harassment allegations fall within the category of highly sensitive and private matters, Plaintiffs fear public stigmatization, humiliation, and embarrassment for being a victim of sexual harassment and assault, Plaintiffs fear personal information such as sensitive medical information will be revealed, and defendant Benn Schecter has appeared at their homes and their parents' homes; (2) the fear of stigmatization, humiliation,

and embarrassment and for their safety supports Plaintiffs' request for anonymity; (3) if Plaintiffs' identities are revealed, there is a substantial probability that their privacy and safety interests will be prejudiced; (4) allowing Plaintiffs to proceed under a pseudonym is a narrow way of addressing the issue as defendants Pegasus Real Estate Advisory LLC and Benn Schechter (collectively "Defendants") are aware of Plaintiffs' identities[1]; and (5) no less restrictive means exist to maintain Plaintiffs' anonymity. (Doe 1 Decl., ¶¶ 2, 4-6; Doe 2 Decl., ¶¶ 2, 4-6; Zhang Decl., ¶ 1-2, Ex. A [Plaintiffs' Confidential Information Form served on Defendants on June 15, 2026].) (Cal. Rules of Court, rule 2.550(d).)

Thus, the court will allow Plaintiffs to proceed under pseudonyms in this action.

DEMURRER

Defendant Pegasus Real Estate Advisory LLC ("Defendant") moves the court for an order sustaining its demurrer on the ground that each cause of action is uncertain due to Plaintiffs' unauthorized and improper use of pseudonyms and on the ground that the first and second causes of action fail to allege facts sufficient to constitute a cause of action.

The court overrules Defendant's demurrer to each cause of action on the ground of uncertainty because, as discussed above, the court is issuing an order allowing Plaintiffs to use pseudonyms in this action. In addition, the Complaint is not uncertain as it is neither ambiguous nor unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) It is clear that the Complaint makes allegations regarding defendant Benn Shechter's ("Shechter") sexual harassment of Plaintiffs, Defendant's failure to prevent sexual harassment, and wage and hour claims. (Compl., ¶¶ 10-17.) (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, ["[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond"] [internal citations and quotations omitted].)

The court overrules Defendant's demurrer to the first cause of action for sexual harassment because Plaintiffs have alleged facts sufficient to constitute a cause of action for quid pro quo harassment since Plaintiffs have alleged that (1) the quid pro quo harassment by defendant Shechter included both explicitly sexual words and unwanted physical touching of sensitive body

parts, which Plaintiffs protested and (2) that Plaintiffs' terms of employment were made contingent by words and/or defendant Shechter's conduct, on Plaintiffs' acceptance of defendant Shechter's sexual advances and/or conduct, and defendant Shechter started treating Plaintiffs poorly after they rebuffed his sexual advances. (Compl., ¶¶ 10, 11, 13.) (Mogilefsky v. Superior Court (1993) 20 Cal.App.4th 1409, 1414 ["To state a cause of action on this theory, is it sufficient to allege that a term of employment was expressly or impliedly conditioned upon acceptance of a supervisor's unwelcome sexual advances"].)

The court overrules Defendant's demurrer to the second cause of action for failure to prevent sexual harassment because Plaintiffs have alleged facts sufficient to constitute a cause of action for failure to prevent sexual harassment since Plaintiffs allege that (1) they were subjected to harassment by defendant Shechter, (2) Defendant failed to take all reasonable steps necessary to prevent sexual harassment in the workplace from occurring since Defendant had prior knowledge of defendant Shechter's sexual harassment of women prior to Plaintiffs' complaints, and (3) as a result of Defendant's conduct, Plaintiffs have suffered damage. (Compl., ¶¶ 10-14, 32-33.) (Caldera v. Department of Corrections and Rehabilitation (2018) 25 Cal.App.5th 31, 43–44 ["When a plaintiff seeks to recover damages based on a claim of failure to prevent ... harassment ... she must show three essential elements: 1) plaintiff was subjected to ... harassment ...; 2) defendant failed to take all reasonable steps to prevent ... harassment ...; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm"] [citation omitted, emphasis in original].)[2]

ORDER

The court orders that plaintiffs Jane Doe 1 and Jane Doe 2 may proceed under pseudonyms in this action.

The court overrules defendant Pegasus Real Estate Advisory LLC's demurrer to plaintiffs Jane Doe 1 and Jane Doe 2's Complaint.

The court orders plaintiffs Jane Doe 1 and Jane Doe 2 to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 29, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

[1]

Although Form MC-125 is a mandatory form for use in actions that include a claim under Civil Code section 1708.85, and no such claim is made in this action, the effect is the same—Defendants are aware of Plaintiffs' identity.

[2] Although Defendant states in its "Demurrer"

(at pages 3-4) that it is also demurring to the third through sixth causes of action, in its "Notice of Demurrer" (at page 2) Defendant only states that it is demurring to the first and second causes of action, and Defendant does not address the third through sixth causes of action in its Memorandum of Points and Authorities (pages 5-12). The court therefore deems Defendant's demurrer as objecting only to the first and second causes of action.